

# The U.P. Secondary Education Department Regularisation of Ad Hoc Appointments on the Post of Trained Graduate Teachers Rules, 2001

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State of Uttar Pradesh - Act

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UTTAR PRADESH

India

The U.P. Secondary Education Department Regularisation of Ad Hoc Appointments on the Post of Trained Graduate Teachers Rules, 2001

Rule

THE-U-P-SECONDARY-EDUCATION-DEPARTMENT-REGULARISATION-OF-AD-HOC-APPOINTMENTS-ON-THE-POST-OF-TRAINED-GRADUATE-TEACHERS-RULES-2001 of 2001

Published on 17 August 2001

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The U.P. Secondary Education Department Regularisation of Ad Hoc Appointments on the Post of Trained Graduate Teachers Rules, 2001

Published Vide Notification No. 3638/15-2-2000-27(40)-93 dated 17.8.2001, published in the U.P. Gazette, Extraordinary, Part 4, Section (Ka), dated 17.8.2001.

In exercise of the powers conferred by the proviso to Article 309 of the Constitution, the Governor is pleased to make the

following rules.

1.

Short title and commencement

. - (1) These Rules may be called the Uttar Pradesh Secondary Education Department Regularisation of Ad hoc Appointments on the Post of Trained Graduate Teachers Rules, 2001.

(2)

They shall come into force at once.

2.

Overriding effect

. - These rules shall have effect notwithstanding anything to the contrary contained in any other rules or orders.

3.

Definitions

. - Unless there is anything repugnant in the subject or context -

(i)

'Appointing authority' means the authority empowered to make appointment to the post of Trained Graduate teacher in a Government School under the relevant service rules.

(ii)

'Available vacancy' means a vacancy for which no candidate has been recommended in accordance with the service rules or orders relating to regular appointment before the date of notification of these rules.

(iii)

'Governor' means the Governor of Uttar Pradesh.

4.

Regularisation of ad hoc appointments

. - (1) Any person who -

(i)

was directly appointed on the post of Trained Graduate teacher in a Government school on ad hoc basis before August 7, 1993 and is continuing in service as such, on the date of commencement of these rules;

(ii)

possessed requisite qualifications prescribed for regular appointment to the post of Trained Graduate teacher at the time of such ad hoc appointment; and

(iii)

has completed or, as the case may be, after he has completed three years service as such shall be considered for regular appointment in permanent or temporary vacancy, as may be available, on the basis of his record and suitability before any regular appointment is made in such vacancy in accordance with the relevant service rules or orders.

(2)

In making regular appointment under these rules, reservation for the candidates belonging to the Scheduled Castes, Scheduled Tribes and other categories shall be made in accordance with the orders of the Government in force at the time of recruitment.

(3)

For the purpose of sub-rule (1), the appointing authority shall constitute a Selection Committee.

(4)

The appointing authority shall prepare an eligibility list of the candidates, arranged in order of seniority as determined from the date of order of appointment and, if two or more persons are appointed together from the order in which their names are arranged in the said appointment order.

(5)

The list shall be placed before the Selection Committee along with their character rolls and such other records, pertaining to them as may be considered necessary to judge their suitability. The Selection Committee shall consider the cases of the candidates on the basis of their records, referred to in sub-rule (4).

(6)

The Selection Committee shall prepare a list of selected candidates, the names in the list being arranged in order of seniority and forward it to the appointing authority.

5.

#### Appointments

. - The appointing authority shall, subject to the provisions of sub-rule (2) of Rule 4, make appointments from the list prepared under sub-rule (6) of the said rule in the order in which their names stand in the list.

6.

Appointments be deemed to be under the relevant service rules etc

. - Appointment made under these rules shall be deemed to be under the relevant service rules or order, if any.

7.

#### Seniority

. - (1) A person appointed under these rules shall be entitled to seniority only from the date of order of appointment after selection in accordance with these rules and shall, in all cases, be placed below the persons appointed in accordance with the relevant service rules, or as the case may be, the regular prescribed procedure, prior to the appointment of such person, under these rules.

(2)

If two or more persons are appointed together, their seniority inter se shall be determined in the order mentioned in the order of appointment.

8.

#### Termination of Services

. - The service of a person, appointed on ad hoc basis who is not found suitable or whose case is not covered by sub-rule (1) of Rule 4 of these rules shall be terminated forthwith and, on such termination, he shall be entitled to receive one month's pay.

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